



Petition for Expungement – Marijuana-Related Offense(s)

IN THE 7th JUDICIAL CIRCUIT, Clay COUNTY, MISSOURI

Judge or Division:

Case Number:

07CY-CR00123456-01

Petitioner:

Maria-Alejandra O'Shaughnessy-Whitfield

vs. (Date File Stamp)

Defendant(s): (select or list all of the agencies you believe may have records of each of the convictions you seek to expunge, attach additional sheets as necessary)

☒ Circuit Court Division Division 12

☐ _____ County Sheriff's Dept.

☐ _____ Municipal Police Dept.

☒ Missouri State Highway Patrol (MSHP), Criminal Justice Information Services (CJIS) Division

☒ Prosecuting Attorney(s) / Circuit Attorney(s) (include name of county)

County Clay

☐ Other (include name and address of agency)

The marijuana-related convictions listed below occurred and were prosecuted within the state of Missouri. I am filing this petition in the county where the conviction(s) was/were charged or I was found guilty.

☐ I am currently incarcerated for a marijuana-related offense that is a misdemeanor or a class E or D felony involving three pounds or less of marijuana. The offense would not have been a crime or would have been a lesser offense had sections 1 and 2 of article XIV of the Missouri Constitution been in effect at the time of the offense.

☒ I am not currently incarcerated or on probation for a marijuana related offense.

I have reason to believe the agencies named above as defendants may possess records subject to expungement.

Pursuant to Article XIV, section 2 of the Missouri Constitution, I request that the court vacate my sentence(s), order immediate release from incarceration or other supervision, and issue an order to expunge my record of arrest, plea, trial, and conviction(s) for the marijuana-related case(s) identified below.

Full Name: Maria-Alejandra O'Shaughnessy-Whitfield

Year of Birth: 1968

Sex: ☐ Male ☐ Female

Race and Ethnicity: (Select one or more) ☐ American Indian or Alaska Native ☐ Asian
☐ Black or African American ☐ Native Hawaiian or other Pacific Islander ☐ White
☐ Hispanic or Latino ☐ Middle Eastern or North African (MENA) ☐ Other ☐ Unknown

Current Address:

1188 Upper Coastal Crossing Road, Apartment 14B
 Excelsior Springs, MO 64024-2214

Please provide the following information for the arrest, plea, trial and conviction(s) to be expunged.
 Attach additional sheets as necessary.

Case Number	Court Name	Approx. Date of Charge	County of Charge	Number and Description of Charge
07CY-CR00123456-01	Clay County Circuit Court	11/02/2009	Clay	195.202 - Possession of a controlled substance (marijuana), Class C felony
07CY-CR00987654-02	Clay County Circuit Court	08/19/2012	Clay	195.211 - Distribution of a controlled substance (marijuana), Class B felony

I declare under penalty of perjury that the statements made herein are true and correct to the best of my knowledge, information, and belief.

Petitioner's Signature



Confidential Case Filing Information Sheet – Non-Domestic Relations

Filing Date: _____	County/City of St. Louis: Clay
Style of Case: _____ (i.e. In the Estate of; In the Matter of; Petitioner v. Respondent.)	☐ The unredacted document is attached to this filing sheet in place of listing the redacted information identifiers below.
Case Type Code: X#	Case Type Description: Expunge Marijuana Criminal/Arrest Records

Party Type Code: _____	Party Type Description: <u>Petitioner</u>
Name (if a person): (Last) <u>O'Shaughnessy-Whitfield</u> (First) <u>Maria-Alejandra</u> (Middle) <u>Katharine</u>	
Organization (if non-person): _____	
Address: <u>1188 Upper Coastal Crossing Road, Apartment 14B</u>	
City: <u>Excelsior Springs</u> State: <u>MO</u> Zip: <u>64024-2214</u> Contact Telephone Number: <u>816-555-0199</u>	
Email Address: <u>maria.alejandra.oshaughnessy.whitfield@example.org</u>	
DOB/DOD: <u>12/31/1968</u> Gender: ☐ Male ☐ Female SSN: _____	
Attorney Name (if represented by counsel): _____ Bar ID: _____ Party Type Code: _____	

Party Type Code: _____	Party Type Description: <u>Defendant</u>
Name (if a person): (Last) _____ (First) _____ (Middle) _____	
Organization (if non-person): <u>Circuit Court of Clay County, Missouri, Division 12</u>	
Address: _____	
City: _____ State: _____ Zip: _____ Contact Telephone Number: _____	
Email Address: _____	
DOB/DOD: _____ Gender: ☐ Male ☐ Female SSN: _____	
Attorney Name (if represented by counsel): _____ Bar ID: _____ Party Type Code: _____	

Party Type Code: _____	Party Type Description: <u>Defendant</u>
Name (if a person): (Last) _____ (First) _____ (Middle) _____	
Organization (if non-person): <u>Missouri State Highway Patrol, Criminal Justice Information Services (CJIS) Division</u>	
Address: _____	
City: _____ State: _____ Zip: _____ Contact Telephone Number: _____	
Email Address: _____	
DOB/DOD: _____ Gender: ☐ Male ☐ Female SSN: _____	
Attorney Name (if represented by counsel): _____ Bar ID: _____ Party Type Code: _____	

Instructions

✓ Complete this form for all parties known at the time of filing. Provide the most appropriate Case Type and Party Type codes and descriptions. (Found on the Case Types List and Party Types List at www.courts.mo.gov on the Court Forms/Filing Information page.)

✓ If additional space is needed, complete additional Confidential Case Filing Information Sheets.

NOTE: The **full** Social Security Number (SSN) is **required** pursuant to Missouri Supreme Court Operating Rule 4.07 if the party is a person and is reasonably available. This is a confidential document. This information is needed to open a case in the court's case management system. While cases deemed public under Missouri statutes can be accessed through Case.net, the day and month of birth, SSN, and confidential addresses are NOT provided to the public through Case.net.

[illegible]

CASE TYPES LIST

CATEGORY & CASE TYPE DESCRIPTION	COURT FILED IN CASE TYPE CODE	
DOMESTIC RELATIONS	FAMILY	CIRCUIT
IV-D Administrative Order with Hearing	Q1	D1
IV-D Contempt	Q2	D2
IV-D Miscellaneous Domestic Relations	Q3	D3
IV-D Motion to Modify	Q4	D4
IV-D Paternity	Q5	D5
IV-D UIFSA - Initiating	Q6	D6
IV-D UIFSA - Responding	Q7	D7
IV-D URESA - Initiating	Q8	D8
IV-D URESA - Responding	Q9	D9
Change of Name	QD	DD
Contempt - Domestic Relations	QG	DG
Dissolution of Marriage without Children	QH	DH
Dissolution of Marriage with Children	QI	DI
Habeas Corpus - Domestic	QJ	DJ
Legal Separation/Annulment/ Separation Maintenance	QK	DK
Modify Registration of Foreign Judgment	QL	DL
Motion to Modify	QM	DM
Paternity	QN	DN
Motion to Modify Paternity	QU	DU
Registration of Foreign Judgment - Child Custody	QO	DO
Registration of Foreign Judgment - Dissolution	QP	DP
Miscellaneous Domestic Relations	QR	DR
Family Access Motion	QS	DS
Set Aside Paternity Judgment	QT	DT
Victim Name Change	QV	DV
Petition for Child Custody/Support	QW	DW
Other Miscellaneous Action	QX	X1
Grandparent Mediation	QY	
Child Support/Administrative Order		NB
Child Support/Administrative Order Modification		NC
ADOPTION	FAMILY	CIRCUIT
Adoption - Regular	JD	JP
Adoption Step - Child	JF	JR
Adoption - Adult	JG	JS
JUVENILE	FAMILY	CIRCUIT
Status Offense	JA	JM
Delinquency	JB	JN
Abuse and Neglect	JC	JO
Termination of Parental Rights	JE	JQ
Permanency Planning Motion	JH	JT
Reentry of Custody to CD (Childrens Division)	JJ	JK
Minor Abortion Contest	JU	
PROTECTION ORDERS	FAMILY	CIRCUIT
Adult Abuse without Stalking	QA	DA
Adult Abuse Stalking	QB	DB
Child Protection Order	QE	DE
Registration of Foreign Protection Order	QQ	DQ

CATEGORY & CASE TYPE DESCRIPTION	COURT FILED IN CASE TYPE CODE	
CONTRACT	ASSOCIATE	CIRCUIT
Breach of Contract	CM	CA
Promissory Note	CN	CB
Specific Performance	CO	CC
Suit on Account	CP	CD
Contract - Other	CQ	CE
ADMINISTRATIVE REVIEW	ASSOCIATE	CIRCUIT
Chapter 536 State Agency Review	IN	IA
Drivers License Revocation Review (302.311 RSMo)	IO	IB
Trial De Novo of DOR Decision	IP	IC
Refused Breathalyzer (302.750/577.04 RSMo)	IQ	ID
Limited Driving Privileges (302.309 RSMo)	IR	IE
Other Administrative Review	IS	IF
Judicial Review of Suspension and Revocation of Motor Vehicle Dealer's License (301.562 RSMo)		IG
SATOP Review	IT	
TORTS	ASSOCIATE	CIRCUIT
Employment Discrimination (213.111 RSMo)	TO	TJ
Public Accommodation (213.111 RSMo)	TP	TK
Asbestos	TQ	TA
Personal Injury - Federal Employee Liability Act	TR	TB
Personal Injury - Malpractice	TS	TC
Personal Injury - Product Liability	TT	TD
Personal Injury - Vehicular	TU	TE
Personal Injury - Other	TV	TF
Property Damage	TW	TG
Wrongful Death	TX	TH
Other Tort	TY	TI
REAL ESTATE	ASSOCIATE	CIRCUIT
Rent and Possession	R1	RI
Unlawful Detainer	R2	RJ
Application to Enforce Mechanics Lien	RS	RA
Eminent Domain/Condemnation - State		RB
Eminent Domain/Condemnation - Other		RC
Exception	RV	RD
Foreclosure	RW	RE
Landlord Complaint	RX	RF
Partition		RG
Quiet Title		RH
Other Real Estate Action	R3	RK
EXTRAORDINARY REMEDY	ASSOCIATE	CIRCUIT
Declaratory Judgment		EA
Habeas Corpus	EP	EB
Injunction		EC
Other Extraordinary Remedy		ED
Show Cause to Enforce Jury Service	ET	EF
Temporary Restraining Order		EG

CASE TYPES LIST

CATEGORY & CASE TYPE DESCRIPTION	COURT FILED IN CASE TYPE CODE	
MISCELLANEOUS CIVIL	ASSOCIATE	CIRCUIT
Action Against Garnishee	YA	XA
CAFA Forfeit (513.600 - 513.645 RSMo)	YB	XB
Common Law Lien Petition (428.115 RSMo)	YC	XC
Contempt	YD	XD
Establishment of Charter	YE	XE
Examination of Judgment Debtor	YF	XF
Expungement of Crim/Arrest Record		XG
Expungement of Records (610.140 RSMo)		X5
Removal of Name from Sex Offender Registry		X6
DOR Re-Issue Driver License		X7I
Removal of Firearm Disqualification		X9
Out of State Witness	YH	XH
Registration of Foreign Judgment (Excluding Domestic Relations)	YI	XI
Replevin	YJ	XJ
Revival of Judgment	YK	XK
Delinquent City License Fee	YL	XL
Delinquent City Tax	YM	XM
Delinquent County License Fee	YN	XN
Delinquent County Tax	YO	XO
Delinquent Sales Tax	YP	XP
Delinquent State Taxes	YQ	XQ
Personal Property Taxes	YR	XR
Tax Action Other	Y1	XZ
Other Miscellaneous Action	Y2	X1
Arbitration Filed	Y4	X4
Trial De Novo		XS
Small Claims Trial De Novo		XT
Will Contest (473.083 RSMo)		XU
Small Claims Certified		XV
Motion, Rules 24.035 or 29.15		XW
Pro Forma Decree of Incorporation		XY
Transcript Judgment		NA
Mechanics Lien		ND
Contraband Destruction Order		NE
Foreign/Non-Case Document		NF
Search Warrant/Investigative Subpoena		NZ
Grandparent Mediation	YT	
Owner/Lienholder Petition for Property Release	YU	
Judicial Review of Filing False Documents	IU	IH
Expunge Marijuana Criminal/Arrest Records	X#	
SMALL CLAIMS	ASSOCIATE	
Small Claims Under \$100	YV	
Small Claims Over \$100	YW	
Petition for Revocation of Conceal Carry Endorsement (571.117 RSMo)	YX	
Appeal of Denial of Conceal Carry Endorsement (571.114 RSMo)	YZ	

PROBATE

CATEGORY & CASE TYPE DESCRIPTION	CASE TYPE CODE	
WILLS		
Will Deposited During Lifetime	P7	
Will Filed Only - Deceased	P9	
Will Admitted or Rejected	PK	
DECEDENT'S ESTATES		
Determination of Heirship	PJ	
Required Administration	PX	
Refusal of Letters - Creditor	PE	
Refusal of Letters - Spouse	PF	
Refusal of Letters - Minor	PG	
	WITH WILL	WITHOUT WILL
Small Estate Affidavit	PH	PI
Independent Administration	PC	PD
Supervised Administration	PA	PB
TRUSTS		
Successor Trustee	P3	
Trust Registration	P4	
INCAPACITATED/DISABLED	MINOR	ADULT
Guardianship	PS	PR
Limited Guardianship	PL	PT
Conservatorship	PO	PN
Limited Conservatorship		PP
Guardian/Conservator	PV	PU
Limited Guardian/Conservator	PY	PW
Dispense with Conservator	PQ	
Standby Guardianship	P2	P1
Registration of Foreign Order Guardian/Conservator	G2	G1
MISCELLANEOUS		
Sexual Predator (632.480)	P6	
Probate Miscellaneous - Non Case	P8	
Miscellaneous Probate - Other	PZ	

INVOLUNTARY DETENTION

CATEGORY & CASE TYPE DESCRIPTION	CASE TYPE CODE
MENTAL HEALTH	
Petition for 21 Day	HB
Petition for 90 Day	HC
Petition for 180 Day	HD
Petition for 1 Year	HE
Involuntary Detention/Treatment - Out of County	HR
Petition for Electroconvulsive Therapy (ECT) Treatment	HF
Application for 96 Hour	HA
Application for Conditional Release	HG
ALCOHOL/DRUG ABUSE	
Application for 96 Hour	HO
Petition for 30 Day	HP
Petition for 90 Day	HQ



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Party Type Code: _____	Party Type Description: <u>Defendant</u>
Name (if a person): (Last) _____ (First) _____ (Middle) _____	
Organization (if non-person): <u>Prosecuting Attorney of Clay County, Missouri</u>	
Address: _____	
City: _____ State: _____ Zip: _____ Contact Telephone Number: _____	
Email Address: _____	
DOB/DOD: _____ Gender: ☐ Male ☐ Female SSN: _____	
Attorney Name (if represented by counsel): _____ Bar ID: _____ Party Type Code: _____	

Party Type Code: _____	Party Type Description: _____
Name (if a person): (Last) _____ (First) _____ (Middle) _____	
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Expungement of Records (610.140 RSMo)		X5
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DOR Re-Issue Driver License		X7I
Removal of Firearm Disqualification		X9
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Application for Conditional Release	HG
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Petition for 90 Day	HQ